

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

Counsel Eisenberg is to re-submit the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) with the correction that the next hearing date is a Further Case Management Conference in Dept. 32 on May 4, 2026 at 8:30 am. The court will execute the revised order.

The withdrawal is effective upon Counsel Eisenberg's filing the proof of service of the signed order on his client and all parties.

10. 9:00 AM CASE NUMBER: C25-02058
CASE NAME: BOARDWALK PORT LLC VS. EARTHGRID PBC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: EARTHGRID PBC
TENTATIVE RULING:

Defendant Earthgrid PBC ("EarthGrid") brings the instant general and special demurrer to the complaint of Boardwalk Port LLC ("Boardwalk"). The complaint alleges a claim for breach of written contract/lease agreement. EarthGrid argues that the complaint fails to state facts sufficient to constitute a cause of action because Boardwalk did not attach the complaint, quote it verbatim, or detail the legal effects and obligations relating to the contract, and does not plead sufficient facts to establish Boardwalk's performance or EarthGrid's breach. EarthGrid also argues that these facts make the complaint uncertain.

Boardwalk argues that it properly alleged the substance of the contract's relevant and material terms and adequately pled the legal effect of the lease.

On reply, EarthGrid reiterates its view that Boardwalk was required to attach the contract to the complaint or quote the provision at issue and that Boardwalk's performance was not pled with specificity.

For the reasons discussed below, the Court overrules EarthGrid's demurrer. EarthGrid is ordered to file and serve its answer or other responsive pleading to the complaint within 20 days of entry of this order.

Meet and Confer

The meet and confer requirement has been satisfied. (Steinberg Decl., ¶¶ 1-4; Code Civ Proc., § 430.41.)

Request for Judicial Notice

EarthGrid requests the Court to take judicial notice of the complaint at issue in this matter, filed by Boardwalk. The Court grants EarthGrid's request for judicial notice.

Legal Standard

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Background

Boardwalk and EarthGrid entered into a written lease agreement on October 30, 2023, whereby Boardwalk would lease to EarthGrid real property located at 1150 Brickyard Cove, Richmond, California, for a term of five years and two months, beginning November 1, 2023. (Demurrer MPA, p. 2.) Boardwalk alleges that it agreed to and did install electric vehicle chargers as an inducement to the contract and now seeks to recover the costs associated with that, but EarthGrid disputes this characterization. (*Id.* at pp. 2-3.)

Boardwalk alleges that EarthGrid breached the agreement because it failed to make its lease payment starting on or around June 2025. (Complaint, ¶ 11.) Boardwalk then served a three-day notice to pay rent or quit on or about June 12, 2025. (*Id.* at ¶ 12.) Boardwalk also alleges that EarthGrid further breached the lease when it abandoned the premises in July 2025. (*Id.* at ¶ 13.) Boardwalk alleges damages in the amount of \$1,784,485.60. (*Id.* at ¶ 14.)

Discussion – General Demurrer

The relevant standard here, due to Boardwalk not attaching a copy of the contract at issue to its pleadings and not quoting the contract verbatim, relates to the following requirement, "[i]n order to plead a contract by its legal effect, plaintiff must 'allege the substance of its relevant terms.'" (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also *Construction Protective*

Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198-199 ["In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language."].) To guide this analysis, "[t]he rules of pleading require, with limited exceptions not applicable here, only general allegations of ultimate fact. [Citations.] The plaintiff need not plead evidentiary facts supporting the allegation of ultimate fact. [Citation.] A pleading is adequate so long as it apprises the defendant of the factual basis for the plaintiff's claim." (*Id.* at pp. 1469-1470.)

In the *Construction Protective Services, Inc. v TIG Specialty Ins. Co.* case, the California Supreme Court discussed how a plaintiff may plead a contract by its legal effect.

In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language. [Citation.] CPS has chosen to proceed in this manner, and though the complaint could have been clearer, it satisfactorily alleged (1) that the insurance policy obligated TIG Insurance to defend and indemnify CPS against suits seeking damages, and (2) that under the terms of the policy, SHC's setoff claim fell within the scope of that contractual obligation. Whether CPS can prove these allegations (that is, whether its interpretation of the applicable contractual language is correct in light of what we have said here) remains to be seen, but the allegations are sufficient to establish a prima facie right to relief. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199.)

In the complaint at issue, Boardwalk alleges a variety of information about the contract, its terms, and their legal effect. (Complaint, ¶¶ 7-14.) Such as, the covenants appearing at sections 1.5, 13.3, and 58 of the contract, which are alleged to involve payment amounts agreed to and their effective dates, as well as promises relating to costs associated with actions done to induce EarthGrid to enter into the lease. (*Ibid.*) In the Court's view, the complaint sufficiently pleads the substance of its relevant terms.

EarthGrid argues in its reply that, "Plaintiff's failure to attach (or even quote from) the Lease ultimately renders it deficient under Code of Civil Procedure sections 430.10(e) and (f), particularly as to the parties' respective obligations and performance or breach (or excused nonperformance) of such obligations under the Lease." (Reply, p. 3:6-9.) However, this portrayal ignores the well-established authority that allows a party to plead the legal effect of a contract. (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199 ["In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language."].) Boardwalk's failure to attach or quote from the Lease is not fatal, as a plaintiff may plead the legal effect of the contract rather than attach the contract or plead the terms verbatim.

EarthGrid's argument that Boardwalk needs to plead its allegations of performance with more specificity is unavailing as it is permissible to plead the conclusion of performance of a condition, if it is not contradicted by specific facts also alleged in the same complaint. (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 174-175.) Here, Boardwalk's performance

allegation of the condition precedent in relation to the electric chargers is sufficient. (See Complaint, ¶¶ 9-10.)

EarthGrid argues that Boardwalk's allegations relating to its installation of electric vehicle chargers as an inducement are not in line with its view of those contract provisions and that the Court should sustain its demurrer and order Boardwalk to add additional allegations. (Reply, pp. 3:12-4:25.) This argument does not track the standard currently being evaluated on this demurrer as there is no requirement for one alleging the substance of the relevant terms of a contract to do so in line with the other side's view of those contract provisions. Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) While it is true that allegations of excuse or waiver of a condition precedent must be pled specifically, here there are no allegations of excuse or waiver of a condition precedent to trigger that requirement. (See Complaint, ¶¶ 9-10 [generally pleading a condition precedent and its satisfaction].)

A "breach" in a breach of contract cause of action may not be pled generally but instead requires the pleader to state facts showing a breach. (*Levy v. State Farm Mutual Automobile Ins. Co.* (2007) 150 Cal. App. 4th 1, 5-6.) Here, this is satisfied by Boardwalk's allegations of the dates that payments were due, the amounts due, and when EarthGrid failed to make those payments. (Complaint, ¶¶ 8, 11-12.)

The Court concludes that Boardwalk has properly pled its claim for breach of written contract and overrules EarthGrid's general demurrer.

Discussion – Special Demurrer

EarthGrid also specially demurs to the complaint for the same reasons it asserts in its general demurrer. (Demurrer MPA, p. 5:8-25.) EarthGrid's special demurrer is overruled because Boardwalk's complaint is not prejudicially uncertain due to the view of this Court that Boardwalk adequately pled the effect of the contract. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 694-696.)

The Court orders EarthGrid to file and serve its answer to the complaint within 10 days of entry of this order.

11. 9:00 AM CASE NUMBER: C25-02154
CASE NAME: AZIZA SHARIFI VS. CITY OF CONCORD
HEARING ON PETITION IN RE: AN ORDER RELIEVING PLAINTIFF FROM GOVERNMENT ENTITY CLAIM
FILED BY: SHARIFI, AZIZA
TENTATIVE RULING:

Plaintiff Aziza Sharifi's petition for relief from the government claim requirement is **granted**.

On October 1, 2024, Plaintiff tripped and fell on a sidewalk and was injured. The six-month deadline to submit a government claim expired on April 1, 2025. On April 8, 2025, Plaintiff hired her